

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 29, 2026
8:30 a.m.

1. ALLISON MCGRARY V. CHRISTOPHER MCGRARY

22FL0464

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on February 26, 2026, to modify child custody and visitation. The filing of the RFO prompted the court to refer the parties to a CCRC session set for March 20, 2026.

To date, there is no proof of service of the RFO in the court's file. Additionally, the court received a memorandum from the CCRC counsellor dated March 20, 2026, stating that neither party appeared at the CCRC session as scheduled. The court will drop the matter from the calendar without prejudice due to lack of service.

TENTATIVE RULING #1: MATTER IS DROPPED FROM THE CALENDAR WITHOUT PREJUDICE DUE TO LACK OF SERVICE.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 29, 2026
8:30 a.m.

2. LYDIA MARIE CAREL V. JEROME SILAS

22FL0110

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent pursuant to Code of Civil Procedure section 473, subdivision (b) on February 25, 2026, to set aside the court's order issued earlier that same day on February 25, 2026, on the grounds that Respondent mistakenly failed to register for the court's new remote appearance platform (implemented February 02, 2026), and therefore, Respondent did not appear at the February 25, 2026, hearing (related to two separate RFOs – one filed by the Respondent on December 01, 2025, and the other filed by the Petitioner on December 12, 2025).

On April 13, 2026, the Respondent filed a declaration with exhibits attached thereto.

On April 20, 2026, the Petitioner filed an objection to Exhibits A through H attached to Respondent's April 13, 2026, declaration on the grounds that the Petitioner was not aware of, or consented to, being recorded. The court sustains the objection and does not consider Exhibits A through H.

The court will vacate its February 25, 2026, order, thereby returning the case to its posture of having a tentative ruling posted February 24, 2026. The court has included the complete text of its February 24, 2026, tentative ruling below.

This matter is before the court for review on two separate Requests for Order (RFO). On December 01, 2025, Respondent filed an RFO requesting he be granted joint physical custody of the parties' children, NS (age 8) and SC (age 7), as well as Temporary Emergency Custody pending the hearing, which was set for December 31, 2025. The court denied Respondent's request for Temporary Emergency Orders pending the hearing.

On December 12, 2025, the Petitioner filed an RFO to modify visitation and require the parties' minor children to be returned to Sacramento, California. Specifically, the Petitioner requested the court to set specific visitation dates for holidays and Summer. The RFO also included a request for Temporary Emergency Orders. On December 12, 2025, the court issued an order shortening time¹ and granted Petitioner Temporary Emergency Orders as follows: Respondent to return children to the Sacramento, California airport no later than December 14, 2025; Respondent shall text Petitioner the flight information at least 24 hours in advance of the flight departure; Respondent shall text Petitioner when the children are ready to be exchanged at the airport; the exchange shall take place at curbside at the airport.

¹ The court required service on the Respondent by December 19, 2025, and any Responsive Pleading to be filed by December 24, 2025. The court deferred referring the parties to CCRC until the hearing, which was set for December 31, 2025.